

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDGARDO REYES,

Plaintiff,

-against-

P.O. JEFF GRATER (Shield No. 05640), P.O. "JOHN/JANE
DOES 1-5", actual names unknown at this time, NEW YORK CITY
POLICE DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

Filed: _____

INDEX NO.

Plaintiff designates Bronx
County as the place of trial.

S U M M O N S

The basis of venue is
the County in which the
cause of action arose.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
October 2, 2017

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

P.O. Jeff Grater
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

P.O. "John/Jane Does 1-5"
40th Precinct
257 Alexander Avenue
Bronx, NY 10454
New York City Police Department
1 Police Plaza
New York, NY 10038

The City of New York
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDGARDO REYES,

Plaintiff,

-against-

P.O. JEFF GRATER (Shield No. 05640), P.O. "JOHN/JANE
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POLICE DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

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VERIFIED COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. EDGARDO REYES at all times relevant hereto resided at 1355 Grand Concourse, Aptt.
1H, Bronx, NY 10452
2. Defendant THE CITY OF NEW YORK is a municipal corporation, incorporated
pursuant to the laws of the State of New York, which operates the defendant NEW
YORK CITY POLICE DEPARTMENT and as such is the public employer of the
Defendant officers herein.
3. Defendant P.O. JEFF GRATER was a NEW YORK CITY POLICE DEPARTMENT
police officer, and at all times relevant hereto, acted in that capacity as agent, servant,
and/or employee of Defendant THE CITY OF NEW YORK and within the scope of his
employment.
4. Defendant P.O. "JOHN/JANE DOES 1-5" were NEW YORK CITY POLICE
DEPARTMENT police officers, and at all times relevant hereto, acted in that capacity as

agents, servants, and/or employees of Defendant THE CITY OF NEW YORK and within the scope of their employment.

5. At all relevant times hereto, Defendants were acting under the color of state and local law.
6. Defendants are sued in their individual and official capacities.
7. At all relevant times hereto, Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were responsible for making and enforcing the policies of the police department and were acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York.
8. This is a civil rights action in which PLAINTIFF EDGARDO REYES seek damages to redress the deprivation, under color of state law, of rights secured to them under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.
9. On October 3, 2014, at approximately 10:50 A.M., on the corner of East 149 Street and Bergen Avenue, Bronx, New York, PLAINTIFF EDGARDO REYES was subjected to excessive force by Defendants, including, but not limited to P.O. JEFF GRATER in that he was struck by a police patrol car, knocked to the ground and punched in and about the face and body by P.O. JEFF GRATER and P.O. "JOHN/JANE DOES 1-5" whose identities are unknown at this time.
10. Plaintiff EDGARDO REYES sustained an open wound to his face requiring sixteen (16) sutures, bruising of the right eye, abrasions about the body, a concussion and hearing loss.

11. Plaintiff EDGARDO REYES was transported to Lincoln Hospital.
12. Plaintiff EDGARDO REYES was falsely arrested by Defendants, including, but not limited to P.O. JEFF GRATER.
13. It is alleged that Defendants falsely arrested Plaintiff EDGARDO REYES and subjected him to excessive force in violation of his constitutional rights.
14. As a result of the excessive force used by Defendants, Plaintiff EDGARDO REYES suffered physical and mental injuries.
15. That Defendants P.O. JEFF GRATER and P.O. "JOHN/JANE DOES 1-5" had the opportunity to intervene, and failed to do so, to prevent violations of Plaintiff's civil rights, including but not limited to the right to be free from the application of excessive force.
16. As a result of the false arrest, Plaintiff EDGARDO REYES was deprived of his liberty.

FIRST CAUSE OF ACTION
Pursuant to §1983 (EXCESSIVE FORCE)

17. Paragraphs 1 through 16 are hereby realleged and incorporated by reference herein.
18. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
19. That Defendants had no legal cause or reason to use excessive force in effectuating Plaintiff's arrest or after Plaintiff was arrested and in custody.
20. That Defendants violated Plaintiff's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

21. That at the time of the arrest or while in custody, Plaintiff did not pose a threat to the safety of the arresting officers.
22. That Plaintiff was not actively resisting arrest or attempting to evade arrest.
23. That Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, through their officers, agents, and employees, unlawfully subjected Plaintiff to excessive force while effectuating his arrest.
24. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
25. That by reason of Defendants' acts and omissions, acting under color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
26. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of Plaintiff's civil rights, including but not limited to the right to be free from the application of excessive force.
27. That upon information and belief, in 2014, Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had a policy or routine practice of using excessive force when effectuating arrests.
28. That upon information and belief, it was the policy and/or custom of defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and

employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

29. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
30. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.
31. By reason of the foregoing, Plaintiff suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

SECOND CAUSE OF ACTION
Pursuant to § 1983 (FALSE ARREST)

32. Paragraphs 1 through 31 of this complaint are hereby realleged and incorporated by reference herein.
33. That Defendants had neither valid evidence for the arrest of Plaintiff nor legal cause or excuse to seize and detain him.
34. That in detaining Plaintiff without a fair and reliable determination of probable cause, Defendants abused their power and authority as policymakers of the defendant NEW YORK CITY POLICE DEPARMTNE under the color of State and/or local law. It is

alleged that the THE CITY OF NEW YORK, via their agents, servants and employees routinely charged persons with crimes they did not commit. Plaintiff was but one of those persons.

35. Upon information and belief, it was the policy and/or custom of Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
36. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to the constitutional rights of arrestees and were the cause of the violations of Plaintiff 's rights alleged herein.
37. By reason of Defendants acts and omissions, Defendants THE CITY OF NEW YOORK and NEW YORK CITY POLICE DEPARTMENT, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

38. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of Plaintiff's civil rights, including but not limited to the right to be free from being falsely arrested.
39. By reason of the foregoing, Plaintiff suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

THIRD CAUSE OF ACTION

Pursuant to § 1983 (MALICIOUS PROSECUTION)

40. Paragraphs 1 through 39 are hereby realleged and incorporated by reference herein.
41. That Defendants, with malicious intent, arrested Plaintiff and initiated a criminal proceeding despite the knowledge that PLAINTIFF had committed no crime.
42. That there was no probable cause for the arrest and criminal proceeding.
43. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of PLAINTIFF's rights, deprived PLAINTIFF of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
44. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, PLAINTIFF was maliciously prosecuted despite the fact that he had committed no violation of the law.

45. That upon information and belief it was the policy and /or custom of defendants to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.
46. That as a result of the above described policies and customs, defendants, their staff, agents and employees of defendants believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
47. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendants to the constitutional rights of arrestees and were the cause of the violations of PLAINTIFF's rights alleged herein.
48. That in so acting, Defendants abused their power and authority as policymaker of their police departments under the color of State and/or local law.
49. That upon information and belief, in 2014, Defendants had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.
50. That by reason of the foregoing, PLAINTIFF suffered physical and psychological injuries, traumatic stress, post traumatic stress disorder, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

FOURTH CAUSE OF ACTION

Pursuant to §1983 (FAILURE TO INTERVENE)

51. Paragraphs 1 through 50 are hereby realleged and incorporated by reference herein.

52. That Defendants failed to intervene when Defendants knew or should have known that PLAINTIFF's constitutional rights were being violated.
53. That Defendants had a realistic opportunity to intervene on behalf of PLAINTIFF, whose constitutional rights were being violated in their presence.
54. That a reasonable person in the Defendants' position would know that PLAINTIFF's constitutional rights were being violated.
55. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of PLAINTIFF's rights, deprived PLAINTIFF of his liberty when they failed to intervene to protect him from Defendants' use of excessive force, in violation of PLAINTIFF's rights pursuant to Fourteenth Amendment of the United States Constitution.
56. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from excessive force by police officers. Thus, as a result of the above described policies and customs, PLAINTIFF was not protected from Defendants' unconstitutional actions.
57. That upon information and belief it was the policy and/or custom of defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to inadequately hire, train, supervise, discipline and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.
58. That as a result of the above described policies and customs, defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their staff, agents and

employees believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

59. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to the constitutional rights of detainees and were the cause of the violations of PLAINTIFF's rights alleged herein.
60. That in so acting, defendant THE CITY OF NEW YORK abused its power and authority as policymaker of the NEW YORK CITY POLICE DEPARTMENT under the color of State and/or local law.
61. That by reason of the foregoing, PLAINTIFF suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.
62. As a result of the acts and conduct complained of herein, PLAINTIFF EDGARDO REYES has suffered and will continue to suffer, physical pain, emotional pain, suffering, permanent disability, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.

WHEREFORE, PLAINTIFF EDGARDO REYES respectfully requests that judgment be entered:

1. Awarding PLAINTIFF compensatory damages in a full and fair sum to be

determined by a jury;

2. Awarding PLAINTIFF punitive damages in an amount to be determined by a jury;
3. Awarding PLAINTIFF interest from October 3, 2014 and
4. Awarding PLAINTIFF reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York

October 2, 2017

Roberta D. Asher

By: Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

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**ATTORNEY'S
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County
of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
October 2, 2017

Roberta D. Asher
ROBERTA D. ASHER

Index No.

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at this time, NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: Roberta D. Asher
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2017 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2017 , at 9:30
A.M.
Dated: